Civics Literacy Test Study Guide

Preparing for the Civics Literacy Test? I can help. Come to my office hours, and we can go over it together.

The Florida Civic Literacy Exam has 80 questions, and you need 60% to pass. It covers four areas, and this guide has one part for each.

Part 1: American Democracy

The basic ideas behind our government, and the kinds of government it is compared with.

The Big Ideas

Idea	Meaning
Popular sovereignty	Power comes from the people.
Republic	People elect representatives.
Rule of law	Everyone must follow the law.
Separation of powers	Power is divided among three branches.
Checks and balances	Each branch can limit the others.

Types of Government

Type	Meaning
Direct democracy	Citizens vote on laws directly. Example: ancient Athens.
Republic	Citizens elect representatives. Example: the Roman Republic.
Monarchy	A king or queen rules, often by inheritance.
Divine right	The idea that a ruler gets power from God.
Dictatorship	One ruler holds power, and people have few freedoms.

Part 2: The Constitution

The Constitution sets up the structure, powers, and limits of the government.

The Preamble

“We the People” means the government gets its power from the people and is accountable to the people. The Preamble lists the purposes of government.

Purpose	Meaning
Establish justice	Courts and fair laws
Ensure domestic tranquility	Keep peace at home
Provide for the common defense	Protect the country
Promote the general welfare	Support the public good
Secure the blessings of liberty	Protect freedom

The Three Branches

Branch	Main jobs
Legislative: Congress (Article I)	Makes laws, declares war, taxes, coins money. Congress is the House of Representatives and the Senate.
Executive: the President (Article II)	Enforces laws, can veto bills, Commander in Chief of the military.
Judicial: the Courts (Article III)	Interprets laws. The Supreme Court is the highest court.

Key Rules

Term	Meaning
Veto	The president rejects a bill. Congress can override a veto with a 2/3 vote in both houses.
Impeachment	The House brings the charges. The Senate holds the trial and can remove the official.
Supremacy Clause	Federal law is above state law. If they conflict, federal law wins.
Habeas corpus	The government must give a reason for holding someone in jail.
Civil law	Disputes between people or groups, such as contracts, property, or slander.
Criminal law	Crimes against society.

The Bill of Rights: the First 10 Amendments

Amendment	What it does
1st	Freedom of religion, speech, press, assembly, and petition
2nd	Right to bear arms
3rd	No quartering of soldiers in homes
4th	No unreasonable searches and seizures; warrants needed
5th	Due process; no double jeopardy; no forced self-incrimination
6th	Speedy public trial, a lawyer, a jury, and witnesses
7th	Jury trial in many civil cases
8th	No cruel and unusual punishment; no excessive bail
9th	People have rights not specifically listed
10th	Powers not given to the federal government go to the states or the people

Other Important Amendments

Amendment	What it does
13th	Ended slavery
14th	Citizenship, due process, and equal protection
15th	Voting rights cannot be denied because of race
16th	Federal income tax
17th	Direct election of senators
18th	Prohibition of alcohol
19th	Women’s right to vote
21st	Repealed prohibition
22nd	President limited to two terms
24th	Banned poll taxes in federal elections
25th	Presidential succession and disability
26th	Voting age lowered to 18

Part 3: Founding Documents

The ideas and documents that shaped our government.

Document or idea	What to know
Mayflower Compact (1620)	Early self-government.
John Locke	An Enlightenment thinker: natural rights and the social contract. His ideas influenced the Declaration of Independence and the Constitution.
Declaration of Independence (1776)	Main author: Thomas Jefferson, inspired by Locke. People have natural rights, government must protect them, and people can change or overthrow a government that fails.

Document or idea	What to know
Constitution (1787)	Main author: James Madison.
Great Compromise (1787)	House: representation by population. Senate: equal representation.
Northwest Ordinance (1787)	Guided westward expansion and banned slavery in that territory.
Monroe Doctrine (1823)	Warned Europe to stay out of the Western Hemisphere.

Part 4: Landmark Cases, Laws, and Events

Supreme Court decisions and major events that changed how the Constitution is applied.

Government and Federal Power

Case	What it decided
***Marbury v. Madison* (1803)**	Established judicial review: the Supreme Court can declare laws unconstitutional.
***McCulloch v. Maryland* (1819)**	The national bank was constitutional, and federal law is supreme over state law.
***Gibbons v. Ogden* (1824)**	The federal government controls interstate commerce.
***United States v. Nixon* (1974)**	Executive privilege is not absolute. The president must obey the law.
***Bush v. Gore* (2000)**	Stopped the Florida vote recount in the 2000 presidential election.

Civil Rights and Equal Protection

Case	What it decided
***Dred Scott v. Sandford* (1857)**	Enslaved people were not citizens and could not sue in federal court, and Congress could not ban slavery in the territories. It increased conflict before the Civil War.
***Plessy v. Ferguson* (1896)**	Upheld segregation under “separate but equal.”
***Korematsu v. United States* (1944)**	Upheld Japanese internment during World War II.
***Brown v. Board of Education* (1954)**	Separate schools are inherently unequal. Overturned *Plessy* in public education.

Rights of the Accused

Case	What it decided
***Mapp v. Ohio* (1961)**	Evidence from an illegal search cannot be used in court.
***Gideon v. Wainwright* (1963)**	Defendants in criminal cases have the right to a lawyer, even if they cannot afford one.
***Miranda v. Arizona* (1966)**	Police must inform suspects of their rights before questioning.

Speech, Religion, and Students

Case	What it decided
***Schenck v. United States* (1919)**	Government can limit speech that creates a clear and present danger.
***Engel v. Vitale* (1962)**	School-sponsored prayer in public schools is unconstitutional.
***Tinker v. Des Moines* (1969)**	Students keep free speech rights in school, as long as they do not substantially disrupt learning.
***Hazelwood v. Kuhlmeier* (1988)**	Schools can censor school-sponsored student speech for valid educational reasons.
***Texas v. Johnson* (1989)**	Flag burning is protected symbolic speech.

Privacy and Individual Liberties

Case	What it decided
***Roe v. Wade* (1973)**	Recognized a constitutional right to privacy in abortion decisions. Overturned by *Dobbs v. Jackson Women's Health Organization* (2022).
***District of Columbia v. Heller* (2008)**	Protected an individual right to have a firearm for lawful purposes like self-defense.

Major Laws and Events

Law or event	What to know
Interstate Commerce Act (1887)	Federal regulation of transportation and trade.
OSHA (1970)	Workplace safety rules.
Watergate (1972–1974)	Led to President Nixon's resignation. Showed that even the president is not above the law.